IN THE ORPHANS' COURT FOR
OR
BEFORE THE REGISTER OF WILLS FOR

SOMERSET COUNTY, MARYLAND

IN THE ESTATE OF

DANIEL, TRAVERS

ESTATE NO. SDAT61UN0928

FILED 5/24/1861

Date of death ____/____/________

Estate Type: UN

Comments:

DISCLAIMER

These digital images were created from documents and records in part or full, which are difficult to read or may be illegible due to handwritten entries and/or natural causes. Possible causes may be, but are not limited to: Documents may comprise of acidic, brittle, soiled, torn or shiny paper.

Some documents may have: water damage, stain (s), dark area (s), blurred area (s), blocked information, ink bleed through, smeared ink, faded ink or faded and/or illegible writing. A document may be the result of a poor copy of original, a negative document, or a document that has been repaired. Documents may have been digitalized through plastic or under glass. Quality may also vary due to different conversion methods used.

Every effort was made to produce the best index and digital image from these records.

May 24th 1861,

Travers Daniel's

Will

William Daniel

Executor

Recorded in Liber JCL
No. 5 Folio 54.55.56 & 57

Test
J C Long Regr

1675

I Travers Daniel, of Somerset County and State of Maryland, being in ordinary bodily health and of sound and disposing mind memory and understanding, do make and publish this to be my last will and testament.

I hereby constitute and appoint my son William Daniel the sole Executor of this my last will and testament.

I give and devise unto my dear wife Mary Daniel all that portion of the farm whereon I now live, following, towit, all that portion of said farm, which I now designate as lot number one, contained within the following metes, bounds & courses, towit; beginning at a locust post set up at the waters edge on the Sound side, and near the end of a ditch bank running from near the house to said Sound side near the harbor, and running North thirty degrees East to a locust post at the lane fence, running from the barn or pound towards the thoroughfare; thence by and with the said fence South sixty four degrees East to a locust post thence by and with the said fence South eighty three degrees East, to a locust post; thence by & with the fence thirty three degrees East to a locust post thence North fifty nine degrees East to the waters edge; thence by and with the thoroughfare North seven degrees East to a locust post set up at the mouth of a ditch; thence by and with said ditch, North eighty two degrees West to a locust post set up at the fence; thence by & with the fence South thirty eight degrees West to a locust post set up at the Eastward side of the aforesaid lane; thence by and with said lane, North seventy four & one half degrees West to a locust post, thence by and with the said lane fence North sixty one and one half degrees West to a locust post, thence North thirty seven degrees West across the field to a stone boundary on the line between William

White and myself at the County road; thence by and with the dividing line between William White and myself, South Westwardly to a locust post set up at the head of "Cedar Creek"; thence by and with the South side of "Cedar Creek" to the Sound Shore, and thence by and with the Sound Shore to the beginning: together with all the woodland lying to the North West side of the County road and adjoining the land of Dewand Evans and William White; together with all the buildings included within the said bounds; the said property, to her my said wife during her natural life only, and at her death I give and devise the same to my said son William Daniel in trust for the use and benefit of my son James T. Daniel and the support of him my said son James and his family, during his natural life, without any power of disposition or sale thereof by the said James; the said William Daniel, trustee, being authorized to use all the proceeds, rents, issues & profits, for the support of said James & his family, during said James' life, and at the death of said James, said trust shall determine, and said property I devise to be equally divided share and share alike, between the children of said James who may be living at the time of his death or born within nine months thereafter, and the descendants of any such child or children per stirpes.-

I give and devise unto Rebecca Bowen, my daughter, her heirs & assigns forever, Lot Number 2, Embracing all that portion of my farm whereon I now live, following to wit; all that portion of said farm which lies to the South and South West of the first few lines of lot Number One as above described, until they run down to the thoroughfare, & which said portion is commonly called the point; and which is bounded all around by the Sound side and thoroughfare, Continuously.

I give and devise unto my daughter Julia Anne Parks her heirs and assigns forever Lot Number three ✓ which includes all that portion of my farm embraced within the following metes and bounds and courses, that is to say, beginning at a stone boundary at the end of the eleventh line of lot number One aforesaid being a boundary on the divisional line between William White and myself, and from thence running with the dividing line between myself and William White North Eastwardly to a stone corner boundary between myself and said William White, and from thence across the field South thirty four & one half degrees E. to the thoroughfare, thence by & with the thoroughfare, South Westwardly to the ditch above mentioned, in the Marsh, which is one of the boundary lines of lot Number One, thence by & with the several lines of lot Number One to the beginning.

I give and devise to my daughter Margaret Dix, her heirs and assigns forever, Lot Number Four, & which is embraced within the following metes and bounds, courses & distances to wit; Beginning at a stone Boundary which is at the end of the first line of Lot Number Three, above described, thence South thirty four and one half degrees East by & with the line of Number 3, to the Thoroughfare; thence by and with the thoroughfare North Eastwardly to a locust post at the Waters Edge; thence across the field North thirty seven and one half degrees West to the South side of the County road; thence by and with the County road South Westwardly to the beginning.

I give and devise all the rest, of the farm on which I now live, and which I now call Number 5, lying to the North and North East of the third line of lot Number Four, and adjoining the lands of William

Price and others, to my daughters, Mary Thomas, Biddy Mister, & Ellen Rowe to them and their heirs forever share and share alike - this devise including & being intended to include all the timbered land not heretofore devised, Extending to the South side of the County road.

I give and devise unto my grand children the Children of my deceased daughter Elizabeth Kelley to them their heirs & assigns forever share and share alike, the land lying in Rock Creek, which I purchased of James Phoebus & others Commissioners to sell the real Estate of Mary Anne White, deceased containing about seventeen acres more or less.

I give and devise unto my son William Daniel his heirs and assigns forever the house and lot in the town of Princess Anne, in which said William has his office, together with six hundred dollars Cash out of my personal estate - which I consider together make a portion Equal with my other children's share of real estate -

I give devise and bequeath unto my daughter Rebecca Carew the full & unmolested privilege of using the Marsh attached to Lot Number One, for any purpose she may desire, and to my other Children to whom I have devised Lots Numbers 3. 4 & 5, I devise Equal privileges of the residue of Marsh unenclosed.

I desire my negroes Isaac, John and Darkey to be free from my death, & I hereby declare them to be free from my death - and my negro girl Sarah I will and desire to be free from and after the first day of January Eighteen hundred & seventy - My negro boy Eben aged about ten years I will and desire to be free from and after the first day of January Eighteen hundred and seventy four; My negro boy Harry aged about seven years I will and desire to be free from and after the first day of January Eighteen hundred and Seventy Seven; and my negro girl Susan aged about five years, I will and desire to be free from and after the first day of January Eighteen hundred and Seventy nine - and until the arrival of the said several periods of freedom of said slaves, I devise as follows, I give and devise unto my beloved wife Mary Daniel My Said negroes Sarah, Eben, Harry and Susan, for and during her natural life, and at her death the residue of the term of servitude of said slaves in accordance with the above devise, which may be unexpired, I desire to be sold by my Executor, and the proceeds of such sale to be equally divided among my children in the same manner as the residue of my Estate is hereafter willed to be distributed, the children of my deceased daughter Elizabeth, receiving a child's share or one ninth -

I give and devise to my wife Mary my negro man Ezekiel - Five hundred dollars in cash; two beds, bedsteads and furniture, one half dozen stool chairs, one Secretary Bureau, all my plate, china, Earthen & Stone ware, One horse called "Hero", One yoke of oxen One Ox cart, one cow & calf, One breeding sow, six hogs, all the fowl, one plough & harrow with yokes and gear, of which articles she is to have her choice.

I devise and bequeath unto my son William Daniel, my Executor, the land I purchased of Noah Kelley Estimated to contain twenty acres more or less situated in Rock. Creek Neck, in trust for the purpose of sale on such terms as he may think most advisable, and the proceeds of such sale to go into the residuum of my Estate and be distributed accordingly.

All the rest and residue of my Estate of every

Kind and description whatever, (including the proceeds of the sale of land in Rock Creek neck) I devise and desire to be Equally divided among all my Children and their descendants, the descendants of any of my Children to take per stripes and not per capita.

In testimony whereof I have hereto set my hand and affixed my seal this fourteenth day of August Eighteen hundred and fifty Eight.

Wm L Daniel {Seal}

Signed sealed published and declared by the above named testator as & for his last will and testament, in our presence who at his request and in his presence and in the presence of each other have subscribed our names as witnesses thereto.

Elisha Thomas
✓ William Thomas
✓ William W. Evans

SOMERSET COUNTY, To wit: May 24th day, 1861.

Then came William W. Evans and William Daniel and made oath on the Holy Evangely of Almighty God, that the foregoing instrument of writing, is the true and whole last Will and Testament of Francis Daniel late of Somerset County, deceased, that hath come to their hands or possession, and that they doth not know of any other.

Before S. C. Long *Register W. S. C.*

SOMERSET COUNTY, to wit: May 24th day, 1861

Then came William W. Evans and William Thomas

two of the subscribing witnesses to the foregoing last Will and testament of Francis Daniel late of Somerset County, deceased, and severally made oath on the Holy Evangely of Almighty God, that they did see the Testator therein named, sign and seal this Will; that they heard him publish, pronounce and declare the same to be his last Will and Testament. That at the time of his so doing, he was, to the best of each their apprehensions, of sound and disposing mind, memory and understanding, capable of executing a valid deed or contract; and that they subscribed their names as witnesses to this Will in the presence, and at the request of the Testator, and in the presence of the other subscribing witness~~es~~ thereto. They further deposed that they saw Elisha Thomas subscribe his name as a witness to this Will in the presence and at the request of the Testator.

Before S. C. Long *Register W. S. C.*